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Vega v. Benihana
of Puente Hills, Inc.,
Case No. 25PSCV03046

ORDER ON MOTION
TO COMPEL ARBITRATION

Defendant Benihana of Puente Hills Corp. (erroneously sued as Benihana of Puente Hills, Inc.) 's Motion to Compel Arbitration is GRANTED. The case is ordered stayed, pending resolution of binding arbitration.

Background

Plaintiff Joseph C. Vega ("Plaintiff") alleges that he sustained injuries when a beer keg fell approximately six feet onto his foot, resulting in pain, swelling, and a torn ligament. Plaintiff further claims that despite his injury and medically-imposed work restrictions, Plaintiff continued performing managerial duties remotely with the approval of company leadership until Defendants abruptly revoked his accommodation, misclassified him as being on leave, and ultimately terminated his employment in retaliation for his disability and protected activities

On August 21, 2025, Plaintiff filed a complaint, asserting causes of action against Benihana of Puente Hills Corp. (erroneously sued as Benihana of Puente Hills, Inc. dba Benihana) ("Benihana") and Does 1-25 for: (1) Discrimination in Violation of the FEHA, (2) Retaliation in Violation of the FEHA, (3) Failure to Prevent Discrimination and Retaliation in Violation of Government Code Section 12940(k), (4) Failure to Provide Reasonable Accommodations in Violation of Govt. Code Section 12940 et seq., (5) Failure to Engage in A Good Faith Interactive Process in Violation of Gov't Code Section 12940 et seq., (6) Violation of the California Family Rights Act-Interference ("CFRA"), (7) Unlawful Retaliation in Violation of CFRA, and (8) Wrongful Termination in Violation of Public Policy.

A Case Management Conference is set for October 9, 2026.

Discussion

Benihana moves the Court for an order compelling arbitration of all claims alleged in the complaint and staying this action in its entirety pending completion of arbitration.

Evidentiary Objections

Defendant's Evidentiary Objections Nos. 1-9 are overruled.

Merits

1. Existence of an Arbitration Agreement

"[T]he petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence…" (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284 [internal quotations and citation omitted].) "In determining whether an arbitration agreement applies to a specific dispute, the court may examine only the agreement itself and the complaint filed by the party refusing arbitration [citation]. The court should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made." (Weeks v. Crow (1980) 113 Cal.App.3d 350, 353 [citations omitted].) "To determine whether a contractual arbitration clause requires arbitration of a particular controversy, the controversy is first identified and the issue is whether that controversy is within the scope of the contractual arbitration clause.” (Titolo v. Cano (2007) 157 Cal.App.4th 310, 316 [internal quotations and citation omitted].) “Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute.” (California Correctional Peace Officers Ass’n v. State (2006) 142 Cal.App.4th 198, 205 [internal quotations and citation omitted].)¿

“[A] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (Giuliano, supra, 149 Cal.App.4th at p. 1284.)¿

“The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence: Because the existence of the agreement is a statutory¿prerequisite to granting the [motion or] petition, the [party seeking arbitration] bears the burden of proving its existence by a preponderance of the evidence.” (Gamboa v. Northeast Community Clinic¿(2021) 72 Cal.App.5th 158, 165 [internal quotations and citation omitted].) However, the burden is a three-step framework. “First, the moving party bears the burden of producing ‘prima facie evidence of a written agreement to arbitrate the controversy.’ The moving party can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement's provisions in the motion.” (Ibid. [internal quotations and citation omitted].)“For this step, it is not necessary to follow the normal procedures of document authentication.” (Id. [internal quotations and citation omitted].)

“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (Id.)

“The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (Id.)

Last, “if¿the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties.” (Id.)

Benihana seeks to compel arbitration based on an Arbitration Agreement containing an electronic signature dated March 4, 2024. (Baugh Decl., ¶ 11, Exh. A.)

Here, Benihana meets its burden through the detailed declaration submitted by Dan Baugh, Human Resources Information Systems Director at Benihana National Corp. First, it lays a sufficient foundation for Plaintiff’s electronic signature on the Arbitration Agreement (“Agreement 2”). (Declaration of Dan Baugh (“Baugh Decl.”) ¶¶ 7–10.) Dan Baugh explains that the Jobvite onboarding system requires each employee, including Plaintiff, to access the onboarding portal through a unique, individualized link sent exclusively to the employee’s designated email address, followed by creation of a secure password known only to the employee. (Id. ¶¶ 7 and, 9.) Baugh further articulates, that Benihana cannot create, reset, or otherwise access an employee’s password, and that any attempt to forward the Jobvite link to another email address would result in an error message, preventing unauthorized access. (Id., ¶ 9.) Baugh details that Plaintiff received the Agreement through Jobvite and electronically signed it by affirmatively selecting “accept” and utilizing his unique login credentials, which Jobvite verified through a date stamp and a unique 32-digit code. (Id., ¶¶ 10–12.) The audit logs also confirm that Plaintiff viewed the Agreement on February 21, 2023, and signed it on March 4, 2023 from an IP address not associated with Benihana. (Id., ¶¶ 11–13.)

Plaintiff offers no evidence disputing these security procedures. Instead, Plaintiff argues that two agreements were signed between Plaintiff and Defendant. In addition to Agreement 2, which Defendant seeks to enforce and use to compel arbitration, Plaintiff relies on a prior agreement, “Agreement 1,” signed on August 17, 2022. Plaintiff contends that Agreement 2 materially altered Vega’s existing arbitration rights by eliminating the 30-day opt-out right, adding an EFAA carve-out, and introducing new individual PAGA provisions.

Agreement 2, signed by
Plaintiff on March 4, 2024, is the controlling arbitration agreement because it contains an integration clause stating: “This Agreement is the full and complete agreement about arbitration disputes covered by this Agreement.” Courts have consistently held that when a later agreement includes an integration clause, that agreement governs. In Grey v. American Management Services (2012) 204 Cal.App.4th 803, the court held that a subsequent employment contract containing an integration clause establishing it as the entire agreement between the parties regarding the employee’s employment is the controlling arbitration agreement. Agreement 2 functions the same way here, and its integration clause renders it the operative arbitration agreement.

Plaintiff further argues
that there was no mutual assent. The parties’ consent to a contract must be free, mutual, and communicated by each to the other. (Civ. Code, § 1565; see also Civ. Code, § 1580 [“Consent is not mutual unless the parties all agree upon the same thing in the same sense.”]; (Fleming v. Oliphant Financial, LLC (2023) 88 Cal.App.5th 13.)

Here, mutual assent
existed between the parties. There are no facts to suggest that either party lacked the freedom to enter into the agreement. The agreement was clearly between Plaintiff and Defendant, covered the same claims, and was communicated by each other. Accordingly, Benihana has met its initial burden of demonstrating the existence of an arbitration agreement.

2. Delegation
Clause

“Although threshold questions of¿arbitrability¿are ordinarily for courts to decide in the first instance under the [Federal Arbitration Act (FAA)], the ‘[p]arties to an¿arbitration
agreement¿may
agree to¿delegate¿to the arbitrator, instead of a court, questions regarding the enforceability of the agreement.’”¿ (Pinela
v. Neiman Marcus Group, Inc. (2015) 238 Cal.App.4th 227, 239 (Pinela)
quoting¿Tiri
v. Lucky Chances, Inc. (2014) 226 Cal.App.4th 231, 241.)¿ “Just
as the arbitrability of the merits of a dispute depends upon whether the

parties agreed to arbitrate that dispute, … so
the question who has the primary power to decide arbitrability turns upon what
the parties agreed about that matter.”¿ (Aanderud, supra, 13 Cal.App.5th
at p. 891.)¿ The
delegation issue is a “gateway” question.¿ (Rent-A-Center, West, Inc. v. Jackson (2010) 561 U.S. 63,
69.)¿¿¿¿¿ ¿¿¿

“There are two prerequisites for a delegation clause
to be effective.¿
First, the language of the clause must be clear and unmistakable. Second, the
delegation must not be revocable under state contract defenses such as fraud,
duress, or unconscionability.¿ The ‘clear and unmistakable’ test reflects a ‘heightened standard of proof’ that reverses the typical presumption in favor of
the arbitration disputes.”¿ (Aanderud, 13¿Cal.App.5th at p. 892 (cleaned up).)¿ Thus, “[u]nless the parties clearly and unmistakably provide
otherwise, the question of whether the parties agreed to arbitrate is to be
decided by the court, not the arbitrator.’”¿ (Pinela, at pp. 239-40.)¿

Here, the parties clearly and unmistakably
agreed to commit questions of arbitrability to the arbitrator.¿The Agreement states, in relevant part, “[D]isputes over the formation, existence, validity,
interpretation or scope’ of the agreement to the arbitrator,” except in
circumstances that do not apply here. (Mot., Ex. A, § 3.)

Plaintiffs argue a delegation provision does not
authorize an arbitrator to decide whether the parties ever formed the
particular contract containing that delegation clause. (Coinbase, Inc. v.
Suski (2024) 602 U.S. 143.)

Here, the Court has determined that there is a valid
arbitration agreement between the parties. A delegation clause is treated
as a separate agreement to arbitrate issues of enforceability. Courts therefore
enforce a valid delegation clause even if the arbitration agreement as a whole
might later be found unenforceable. (Malone v. Superior Court (2014)
226 Cal.App.4th 1551, 1559.) “For this reason, when a party is
claiming that an arbitration agreement is unenforceable, it is important to
determine whether the party is making a specific challenge to the
enforceability of the delegation clause or is simply arguing that the
agreement as a whole is unenforceable. If the party’s challenge is directed
to the agreement as a whole—even if it applies equally to the delegation clause—the
delegation clause is severed out and enforced; thus, the arbitrator, not the

court, will determine whether the agreement is enforceable.” (Id., at pp. 1559-60.) Here, Plaintiff has offered no evidence showing that the delegation clause itself is procedurally or substantively unconscionable.

Conclusion

The motion is granted. The case is ordered stayed, pending resolution of binding arbitration. The Case Management Conference set for October 9, 2026 is VACATED, and the Court sets a Status Conference Re: Arbitration for March 15, 2027, at 8:30 a.m. The parties are directed to file a Joint Status Report at least seven calendar days before that status conference setting forth the status of arbitration.